

Amendment No. 1 to SB0304

Gardenhire
Signature of Sponsor

AMEND Senate Bill No. 304*

House Bill No. 583

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 24-7-123(b)(1), is amended by deleting the subdivision and substituting:

(1) The child or the forensic interviewer who conducted the interview testifies, under oath, that the offered video recording is a true and correct recording of the events contained in the video recording and the child is available for cross examination;

SECTION 2. Tennessee Code Annotated, Section 24-7-123(b)(3)(A), is amended by deleting the subdivision and substituting:

(i) Was employed by a child advocacy center that meets the requirements of § 9-4-213(a) or (b); provided, however, that an interview is not inadmissible solely because the interviewer is employed by a child advocacy center that:

(a) Is not a nonprofit corporation, if the child advocacy center is accredited by a nationally recognized accrediting agency;

(b) Employs an executive director who does not meet the criteria of § 9-4-213(a)(2), if the executive director is supervised by a publicly elected official; or

(c) Does not have a signed memorandum of understanding and working protocol executed among all county and municipal law enforcement agencies within the geographical area served by the center, so long as the child advocacy center, the department of children's services, and any district attorney general have signed or executed such a memorandum of understanding and working protocol; or

(ii) Was employed by a federal agency and conducted the forensic interview in the course of an investigation of a federal crime;

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.